IN THE UNITED STATES DISTRICT COURT
FOR THE DISTRICT OF COLORADO

Civil Action No. 1:26-cv-02065-MDB

MAXFIELD ALTON SUSSMAN,

Plaintiff,

v.

DEPUTY JOSHUA T. MILLER, in his individual capacity;
SERGEANT URIAH CAIN SPEIGHT, in his individual capacity; and
DEPUTY JEREMY MILLER, in his individual capacity,

Defendants.

MOTION TO DISMISS

Defendants, DEPUTY JOSHUA MILLER, SERGEANT URIAH SPEIGHT, and DEPUTY JEREMY MILLER, through their attorneys, SGR, LLC, and pursuant to Fed.R.Civ.P. 12(b)(6), hereby submit their Motion to Dismiss Plaintiffs' Complaint, and state as follows:

CERTIFICATE OF COMPLIANCE

Pursuant to the Court's civil practice standards, the undersigned conferred with Plaintiff regarding the relief requested in this Motion. Plaintiff opposes the Motion.

I. INTRODUCTION

Plaintiff's 22,000-word Complaint (ECF No. 1) alleges facts that demonstrate probable cause existed to arrest and prosecute him for felony menacing. For example,

he admits that he brandished a weapon at another person in order to intimidate them. That constitutes felony menacing in Colorado. That he denies ever pointing the weapon at anyone and claims he was merely holding a BB gun is immaterial. Defendants move to dismiss Plaintiff's claims on this basis, as well as others described below.

II. STANDARD OF REVIEW

Pro se plaintiffs must follow the same rules of procedure that govern all litigants. *Kay v. Bemis*, 500 F.3d 1214, 1218 (10th Cir. 2007). In deciding a motion under Rule 12(b)(6), the court must "accept as true all well-pleaded factual allegations … and view these allegations in the light most favorable to the plaintiff." *Casanova v. Ulibarri*, 595 F.3d 1120, 1124 (10th Cir. 2010). A plaintiff, however, may not rely on mere labels or conclusions, "and a formalistic formulaic recitation of the elements of a cause of action will not do." *Bell Atlantic Corp. v. Twombly*, 550 U.S. 544, 555 (2007). Rather, "a complaint must contain sufficient factual matter, accepted as true, to state a claim [for] relief that is plausible on its face." *Ashcroft v. Iqbal*, 556 U.S. 662, 678 (2009).

III. ALLEGED FACTS

Plaintiff's claims arise out of a series of interactions with his neighbors on May 19, 2024, and his subsequent arrest by deputies with the Fremont County Sheriff's Office (FCSO). Plaintiff alleges that FCSO responded to a report of a crime to his neighbor's house, and that his neighbors told deputies that he was standing in his front door holding a rifle while they passed by his house. ECF No. 1, ¶¶ 15-17, 39(B)(i)-(ii). After taking a witness statement from his neighbors and viewing video of the incident, the deputies arrived at his house. *Id.* at ¶ 22.

Plaintiff spoke with the deputies about the incident. *Id.* at ¶ 24(C). He told the deputies: "I held out my BB gun, and she [the neighbor] started screaming, 'he's

pointing an AK at me.'" ECF No. 1, ¶ 24C. Plaintiff repeatedly references the body worn camera footage from this incident. *Id.* That footage depicts the way he told the deputies he had been holding the gun:

See also Def.'s Ex. A (Deputy Josua Miller's Body Worn Camera), 00:24:50.[1] He further alleges telling deputies why he was holding up a gun – first to "defend his property", and then later to defend his life. *See* ECF No. 1, ¶ 24(C).[2]

Plaintiff attempts to explain why he held up a BB gun to intimidate a passing vehicle, by asserting that his neighbors were the aggressors. Plaintiff told deputies that his neighbors drove by his house earlier that day and revved their engine. *Id.* at ¶ 39(B). Plaintiff told deputies that his neighbors did not point a gun at him during this "first pass." *Id.*[3] Plaintiff alleges he then got into his car, followed his neighbors until they stopped their car, and "verbally asked [them] to stop driving by his residence and pointing a firearm at him." *Id.* at ¶ 39(A).[4] Plaintiff further alleges that his neighbors then pointed a gun at him after he followed them down the road. *Id.* at ¶ 39(A). Per Plaintiff, his neighbors ultimately returned for a "second pass" of his home, and the driver of the vehicle pointed a pistol at him while the driver's wife video recorded. *Id.* at ¶ 39(b).

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[1] The Court may consider this footage as it is referenced in the Complaint and central to the claims. *See Jacobsen v. Deseret Book Co.*, 287 F.3d 936, 941 (10th Cir. 2002).

[2] Notably, Plaintiff's gesture with the rifle from the video above corroborates what witnesses had told the deputies. *Id.* at ¶ 39(B)(2).

[3] Given that the complaining party and Plaintiff are neighbors, the act of driving by his house and then coming back in the opposite direction (as described at ECF No. 1, ¶ 39) is entirely consistent with the neighbors leaving and then returning to their home.

[4] While Plaintiff alleges that he told his neighbors to stop pointing guns at him after he followed them down the road, he also alleges that they did not point guns at him before this. *Id.* at ¶ 39(B). The allegations are contradictory and need not be accepted. *See Frappied v. Affinity Gaming Black Hawk, LLC*, 966 F.3d 1038, 1053 (10th Cir. 2020).

Deputy Joshua Miller arrested Plaintiff after Plaintiff tried to explain the incident to the deputies. *Id.* at ¶¶ 32-35. Sergeant Uriah Speight aided in the arrest and "authored, approved, or ratified" a supplemental report. *Id.* at ¶ 37. Plaintiff claims that Deputy Jeremy Miller was present on scene and "failed to intervene during the muted-audio strategy-discussion." *Id.* at ¶ 42(B).

Plaintiff brings various claims against each of these three Defendants, including for false arrest, malicious prosecution, failures to intervene in his arrest, "fabrication of evidence" and violations of equal protection, pursuant to 42 U.S.C. § 1983 and C.R.S. § 13-21-131 (ELEIA). Defendants address these claims in turn.

IV. ARGUMENT

A. State and Federal Law is Similar.

Plaintiff alleges state and federal law claims that are essentially identical. Article II, § 7 of the Colorado Constitution protects individuals from unreasonable searches and seizures. *See People v. Rister*, 803 P.2d 483, 489-90. This provision of the Colorado Constitution is substantially similar to the federal Fourth Amendment. The same is true of the constitutional provisions that Plaintiff asserts claims under. Additionally, like with federal court, any arrest in Colorado must be supported by probable cause. *See People v. King*, 16 P.3d 807, 812 (Colo. 2001). The Colorado Court of Appeals has held that case law developed under 42 U.S.C. § 1983 should be used as authority in determining ELEIA claims. *See Woodall v. Godfrey*, 553 F.3d 249, 256-57 (Colo. App. 2024); *Brooks v. City & Cnty. of Denver*, 593 P.3d 937, 951 (Colo. App. 2026). Here, Plaintiff's federal and state claims are identical. The Court should analyze them using the same standard in finding that probable cause existed to arrest Plaintiff.

B. Defendants possessed probable cause.

Plaintiff asserts he was wrongfully arrested and that the charges against him were false. However, taking the factual allegations in the Complaint as true, there was probable cause for felony menacing. This is dispositive of all claims.

Probable cause exists if "the facts and circumstances within the arresting officers' knowledge and of which they had reasonably trustworthy information were sufficient to warrant a prudent man in believing that the suspect had committed or was committing an offense." *Adams v. Williams*, 407 U.S. 143, 148 (1972); *Keylon v. City of Albuquerque*, 535 F.3d 1210, 1216 (10th Cir. 2008) (recognizing same). "Probable cause doesn't require proof that something is more likely true than false. It requires only a 'fair probability,' a standard understood to mean something more than a 'bare suspicion' but less than a preponderance of the evidence at hand." *United States v. Denson*, 775 F.3d 1214, 1217 (10th Cir. 2014). "When assessing whether an officer had probable cause to arrest an individual, courts 'examine the events leading up to the arrest, and then decide whether these historical facts, viewed from the standpoint of an objectively reasonable police officer, amount to' probable cause." *A.M. v. Holmes*, 830 F.3d 1123, 1139 (10th Cir. 2016) (quoting *Maryland v. Pringle*, 540 U.S. 366, 371 (2003)). Probable cause "is not a high bar." *Kaley v. United States*, 571 U.S. 320, 338 (2014)).

Plaintiff alleges that he was charged with felony menacing. ECF No. 1, ¶ 106. Felony menacing in Colorado is codified at C.R.S. § 18-3-206:

> A person commits the crime of menacing if, by any threat or physical action, he or she knowingly places or attempts to place another person in fear of imminent serious bodily injury. Menacing is a class 1 misdemeanor, but it is a class 5 felony if committed by the use of a firearm, knife, or bludgeon or a simulated firearm, knife, or bludgeon.

Felony menacing is not a specific intent crime. *See People v. Crump*, 769 P.2d 496, 498-99 (Colo. 1989). Because Plaintiff's alleged justification for brandishing a simulated firearm does not negate the intent or act as defined by the statute (i.e., to place a person in fear of serious bodily injury), his claim for self-defense is an affirmative defense. *See Galvan v. People*, 476 P.3d 746, 753 (Colo. 2020). But an affirmative defense does not negate probable cause. *See Devloo v. Archuleta County*, No. 26-cv-00208-NYW-CYC, 2026 WL 2194742 at *4 (D.Colo. July 30, 2026) (reviewing the state of the law).

1. The Complaint Alleges Facts Demonstrating Probable Cause.

Here, Deputies were told by a complaining party that "'I don't know if he was pointing [the gun] at me, but it was very clear he was brandishing it in the air" and "I don't know if he pointed it at me, but it's very apparent that it's a fucking AR." ECF No. 5, 39(B)(ii). The complaining parties also told the deputies that Plaintiff had "tried [to run them over with his car]' or threatened them[.]" *Id.* at ¶ 39(A). Plaintiff also told and admitted to the deputies: "I'm allowed to hold up any actual weapon on my own property to defend my property … I'm defending my life." *Id.* at ¶ 24(C). Plaintiff admits he held his BB gun out at his neighbors and that they started "screaming" as a result. *Id.*

That conduct, considered together and gleaned purely from the facts alleged in the Complaint, constitutes probable cause for felony menacing. Plaintiff admits to brandishing a weapon to ward someone away from his property using the threat of physical force by a simulated weapon. He alleges and admits that his actions did in fact cause distress as his victims screamed contemporaneously. He further admits that the officers were aware of these facts based on what the neighbors had told them.

While Plaintiff alleges that he did not "aim, sight, or draw down the BB gun in the direction of the complainants," this is irrelevant and does not defeat probable cause. *See People v. Shawn*, 107 P.3d 1033, 1036 (Colo. App. 2004) ("The term 'use' in § 18–3–206 is broad enough to include the act of holding the weapon in the presence of another in a manner that causes the other person to fear for his safety.") (quoting *People v. Hines*, 780 P.2d 556, 559 (Colo. 1989)). Again, Plaintiff admitted to deputies that he had held the weapon in the presence of neighbors before they started screaming. ECF No. 1, ¶ 24(C). From the information alleged in the Complaint that the deputies knew, Plaintiff's gesture with the simulated weapon falls squarely into felony menacing.

2. The Body Worn Camera Footage.

As explained above, the Court may consider the referenced body worn camera footage depicting the entirety of the arrest and conversation with Plaintiff. *See Jacobsen*, 287 F.3d at 941. Broadly, this footage reflects Plaintiff's allegations.[5]

Plaintiff asserts that the deputies engaged in a nefarious scheme, as evidenced by a lull in the audio recording of body worn camera footage. *See, e.g.* ECF No. 1, ¶ 25(D)(i)((iii). But state law allows an officer to mute his camera for tactical discussions when a member of the public is not present. COLO.REV.STAT. § 24-31-902(1)(a)(II)(B). These allegations constitute the only personal participation claimed against Deputy Jeremy Miller. Because that conduct was lawful, Plaintiff has failed to allege Deputy Jeremy Miller's personal participation in a constitutional violation and the claims against him should be dismissed. *See Beedle v. Wilson*, 422 F.3d 1059, 1072 (10th Cir. 2005) ("Liability under § 1983 requires personal participation in the unlawful acts."); *Shash v.*

[5] Notably, the body worn camera footage does not depict Deputy Miller refusing to view Plaintiff's supposed video of the incident. *See* Def.'s Ex. A.

City of Pueblo, 770 F.Supp.3d 1279, 1293-94 (D.Colo. March 14, 2025) (same requirement for ELEIA claims).

C. The Complaint Violates Rule 8.

Even if the Court disagrees with the above, the Complaint is not " a short and plain statement of the claim showing that the pleader is entitled to relief." Fed.R.Civ.P. 8(a)(2). It is eighty pages long and uses nearly 22,000 words to describe a short series of events between him, his neighbors, and law enforcement. The Complaint constantly cross-references pages of allegations from other paragraphs, creating a morass that would be almost impossible to respond to in an answer. Such a prolix complaint should be dismissed. *See Mann v. Boatright*, 477 F.3d 1140, 1148 (10th Cir. 2007).

WHEREFORE, for the reasons stated herein, Defendants respectfully request that the Court enter an Order dismissing Plaintiff's Complaint with prejudice and grant all other and further relief as the Court deems appropriate.

Respectfully submitted this 16th day of September, 2026.

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Attorneys for Defendants

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that on this 16th day of September, 2026, I electronically filed a true and correct copy of the above and foregoing MOTION TO DISMISS with the Clerk of Court using the CM/ECF system which will send notification of such filing to the following email addresses. A copy was emailed to the following pro se party:

Maxfield Alton Sussman
Email: maxs1983184@gmail.com
Plaintiff Pro Se

/s/ Mariel Juniper
Legal Secretary